

IN THE SENATE

SENATE BILL NO. 1285, As Amended

BY COMMERCE AND HUMAN RESOURCES COMMITTEE

AN ACT

RELATING TO QUALIFICATIONS FOR OCCUPATIONAL AND PROFESSIONAL LICENSURE;
AMENDING CHAPTER 94, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-9419, IDAHO CODE, TO PROVIDE FOR NONPUBLIC SCHOOL HIGH SCHOOL DIPLOMA EQUIVALENCY RELATING TO OCCUPATIONAL LICENSING; AMENDING SECTION 54-606, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-1112, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 54-1113, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-1606, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL; AMENDING SECTION 54-2012, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-2409, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-2916, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL; AMENDING SECTION 54-2916A, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL; AMENDING SECTION 54-2916B, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL; AMENDING SECTION 54-3108, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-3109, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-4009, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 54-4307, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-5406, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL; AMENDING SECTION 54-5802, IDAHO CODE, TO PROVIDE FOR GRADUATION FROM A NONPUBLIC SCHOOL AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-5810, IDAHO CODE, TO PROVIDE FOR NONPUBLIC SCHOOL EDUCATION; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 94, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-9419, Idaho Code, and to read as follows:

67-9419. NONPUBLIC SCHOOL HIGH SCHOOL DIPLOMA EQUIVALENCY. Notwithstanding any provision of law to the contrary, in determining qualifications for licensure, a licensing authority shall regard a person who is eighteen (18) years of age or older and who has earned a high school diploma from a nonpublic school as possessing the equivalent of:

- (1) Graduation from an accredited high school;
- (2) A high school diploma; or

1 (3) A GED.

2 SECTION 2. That Section 54-606, Idaho Code, be, and the same is hereby
3 amended to read as follows:

4 54-606. STATE BOARD OF PODIATRY -- EXAMINATION FOR LICENSES. (1) Every
5 person, except as hereinafter provided, desiring to commence the practice
6 of podiatry within this state shall make written application to the state
7 board of podiatry ~~upon~~ on forms to be prescribed and furnished by the board
8 for a license so to do. Such applications shall be accompanied by a fee as
9 established by board rule not to exceed four hundred dollars (\$400). Each
10 applicant shall be at least twenty-one (21) years of age, shall not have been
11 convicted, found guilty, or received a withheld judgment or a suspended sen-
12 tence in this state or in any other state of a crime that is deemed relevant
13 in accordance with section 67-9411(1), Idaho Code, shall have completed
14 an accredited podiatric residency as defined by board rule, and shall be a
15 graduate of ~~some~~ a reputable school of podiatry accredited by the board. A
16 reputable school of podiatry for the purposes herein shall mean a school of
17 podiatry requiring for graduation the graduation from an accredited high
18 school or a nonpublic school, credits granted for at least two (2) full years
19 of general college study in a college or university of recognized standing,
20 and four (4) full years of study in such school of podiatry or its equivalent.

21 (2) Each applicant shall take and pass a competency exam approved by
22 board rule. The examination shall test for entry-level competency to pro-
23 vide podiatric medical services.

24 (3) The examination fee shall not exceed the amount charged by the
25 board-approved exam provider. The applicant shall pay the examination fee
26 directly to the exam provider.

27 SECTION 3. That Section 54-1112, Idaho Code, be, and the same is hereby
28 amended to read as follows:

29 54-1112. REQUIREMENTS FOR RESIDENT TRAINEE LICENSE. The board shall
30 issue to any person a resident trainee license to practice as a resident
31 trainee and perform services at a particular establishment under the per-
32 sonal supervision of a specified licensed mortician within the state of
33 Idaho who has complied with and fulfilled all of the following requirements:

34 (1) Has attained ~~the age of~~ eighteen (18) years of age, and is a resident
35 of the state of Idaho.

36 (2) Has not been convicted, found guilty, or received a withheld judg-
37 ment or a suspended sentence in this state or in any other state of a crime
38 that is deemed relevant in accordance with section 67-9411(1), Idaho Code.

39 (3) Has graduated from an accredited high school or a nonpublic school
40 or has received an equivalent education as determined by the standards set
41 and established by the state board of education.

42 (4) Has filed an application with the board as required by this chap-
43 ter and paid the required filing fee. Provided further, that the board shall
44 make the determination of qualifications of all applicants within a reason-
45 able time after the filing of an application with the board. Provided fur-
46 ther, no person shall be eligible to be licensed as a resident trainee for
47 a total cumulative period of more than three (3) years in the state of Idaho

1 unless approved by the board for good cause. The three (3) year limitation
 2 includes all time practicing as a resident trainee or apprentice for a mortici-
 3 cian license, funeral director license, or both.

4 SECTION 4. That Section 54-1113, Idaho Code, be, and the same is hereby
 5 amended to read as follows:

6 54-1113. APPLICATION FOR LICENSE -- FORM AND CONTENTS -- CERTIFIED
 7 COPIES OF DOCUMENTS SHOWING QUALIFICATIONS. All applications for all li-
 8 censes to be issued ~~under~~ pursuant to the provisions of this ~~aet~~ chapter
 9 shall be filed with the board, together with the required filing fee, upon
 10 such forms as prescribed by the board of morticians, and shall contain state-
 11 ments of facts relating to each of the qualifications prescribed in this
 12 ~~aet~~ chapter for which the license is sought as well as any other informa-
 13 tion specified by the board of morticians. The board may require, as part
 14 of the application, certified copies of documents showing compliance with
 15 the requirements for the license sought by the application, including but
 16 not limited to certified copies of diplomas or graduation certificates from
 17 high schools, colleges and embalming colleges, certified copies of birth
 18 certificates, and certified copies of articles of incorporation. For the
 19 purposes of this section, a document proving graduation from a nonpublic
 20 school shall satisfy the requirement for a high school diploma or graduation
 21 certificate. The application shall also list and describe the location of
 22 court records of any felony of which the applicant has been convicted in a
 23 court of law. All applications shall be signed by the applicant who shall
 24 verify the contents thereof under oath. All applications shall remain with
 25 the board and be a permanent record in that office.

26 Applications for the renewal of licenses shall be in such abbreviated
 27 form as prescribed by the board and shall require any information specified
 28 by the board of morticians.

29 SECTION 5. That Section 54-1606, Idaho Code, be, and the same is hereby
 30 amended to read as follows:

31 54-1606. QUALIFICATIONS FOR EXAMINATION FOR LICENSE. (1) The board
 32 shall approve for the licensing examination any long-term care administra-
 33 tor candidate who:

34 (a) Submits the required application and pays a fee as determined by the
 35 board;

36 (b) Has not been convicted, found guilty, or received a withheld judg-
 37 ment or a suspended sentence in this state or any other state of a crime
 38 deemed relevant in accordance with section 67-9411(1), Idaho Code; and

39 (c) Meets the specific age, education, and experience requirements for
 40 the type of care facility as outlined in subsections (2) and (3) of this
 41 section.

42 (2) (a) For residential care facility administrators, the candidate
 43 must:

44 (i) Be at least twenty-one (21) years of age;

45 (ii) Submit evidence of successfully completing specialized
 46 courses or a program of study in residential care facility admin-
 47 istration as approved by the board; and

(iii) Meet one (1) of the following combinations of education and experience:

1. A high school diploma or equivalent, including proof of graduation from a nonpublic school, and eight hundred (800) hours of on-site experience in a residential care facility under the supervision of a licensed administrator;
2. An associate degree from an accredited college or university and four hundred (400) hours of on-site experience in a residential care facility under the supervision of a licensed administrator; or
3. A bachelor's degree from an accredited college or university and two hundred (200) hours of on-site experience in a residential care facility under the supervision of a licensed administrator.

(b) Alternatively, a candidate who does not meet the education and experience requirements may submit evidence of satisfactory practical experience obtained in residential care facility administration or in a medical or health care facility as approved by the board.

(3) (a) For nursing home administrators, the candidate must:

- (i) Be at least eighteen (18) years of age;
- (ii) Hold a baccalaureate degree from an accredited institution of higher learning or its equivalent; and
- (iii) Complete an administrator-in-training program as described in section 54-1612, Idaho Code.

(b) Alternatively, a candidate who does not meet the educational requirements may submit evidence of obtaining two (2) years of satisfactory practical experience in management in a nursing home for each year of required post-high school education.

SECTION 6. That Section 54-2012, Idaho Code, be, and the same is hereby amended to read as follows:

54-2012. MINIMUM REQUIREMENTS FOR AN INDIVIDUAL PRIMARY IDAHO LICENSE. (1) Requirements for all individual primary licenses. Unless a qualification is waived or modified by the commission for good cause and upon special consideration, and except as provided in section 54-2015, Idaho Code, each person seeking a primary Idaho real estate license as a salesperson, associate broker, or designated broker shall meet all of the following minimum qualifications:

- (a) Be an individual;
- (b) Be eighteen (18) years of age or older;
- (c) Furnish satisfactory proof that the applicant graduated from an accredited high school or its equivalent, including a nonpublic school, or holds a certificate of general education;
- (d) Not have had a real estate or other professional or occupational license suspended or surrendered, or the renewal refused, for a disciplinary violation involving fraud, misrepresentation, or dishonest or dishonorable dealing in Idaho or any other jurisdiction within five (5) years immediately prior to the date the application for license is submitted to the commission;

1 (e) Not have had a real estate or other professional or occupational li-
2 cense revoked for a disciplinary violation involving fraud, misrepres-
3 entation, or dishonest or dishonorable dealing in Idaho or any other
4 jurisdiction; provided that, after a period of five (5) years from the
5 date the license was revoked, the applicant may make a written request
6 to the commission for an exemption review to determine the applicant's
7 suitability for licensure, which the commission shall determine in ac-
8 cordance with the following:

9 (i) The exemption review shall consist of a review of any docu-
10 ments relating to the disciplinary action that resulted in the li-
11 cense revocation and any supplemental information provided by the
12 applicant regarding his suitability for licensure. The commis-
13 sion may, at its discretion, grant an interview of the applicant.

14 (ii) During the review, the commission shall consider the follow-
15 ing factors and evidence:

16 1. The severity or nature of the disciplinary violation for
17 which the applicant's license was revoked;

18 2. The period of time that has passed since the disciplinary
19 violation occurred;

20 3. The existence, number, and pattern of any other miscon-
21 duct for which the applicant has been disciplined;

22 4. The circumstances surrounding the disciplinary viola-
23 tion that would help the commission determine the risk of
24 repetition;

25 5. The relationship of the disciplinary violation to the li-
26 censed practice of real estate; and

27 6. The applicant's activities since the disciplinary vio-
28 lation under review, such as employment, education, partic-
29 ipation in treatment, payment of restitution, or any other
30 factors that may be evidence of current rehabilitation.

31 (iii) The applicant shall bear the burden of establishing his cur-
32 rent suitability for licensure.

33 (f) Not have been convicted of or completed any sentence of confine-
34 ment for or on account of any misdemeanor involving fraud, misrepresen-
35 tation, or dishonest or dishonorable dealing in a state or federal court
36 within five (5) years immediately prior to the date the application for
37 license is submitted to the commission;

38 (g) Not have been convicted of any felony in a state or federal court
39 or convicted by military general court-martial; provided that, after a
40 period of five (5) years from the date the person was convicted or com-
41 pleted any term of probation, sentence or confinement, or period of pa-
42 role, whichever is later, the applicant may make written request to the
43 commission for an exemption review to determine the applicant's suit-
44 ability for licensure, which the commission shall determine in accor-
45 dance with the following:

46 (i) The exemption review shall consist of a review of any docu-
47 ments relating to the felony and any supplemental information pro-
48 vided by the applicant regarding his suitability for licensure.
49 The commission may, at its discretion, grant an interview of the
50 applicant.

(ii) During the review, the commission shall consider the following factors or evidence:

1. The severity or nature of the felony;
2. The period of time that has passed since the felony under review;
3. The number or pattern of felonies or other similar incidents;
4. The circumstances surrounding the crime that would help determine the risk of repetition;
5. The relationship of the crime to the licensed practice of real estate; and
6. The applicant's activities since the crime under review, such as employment, education, participation in treatment, payment of restitution, or any other factors that may be evidence of current rehabilitation.

(iii) The applicant shall bear the burden of establishing his current suitability for licensure.

(h) Complete all prelicense education requirements, as provided for in section 54-2022, Idaho Code, for a salesperson's or broker's license;

(i) Pass the commission-approved real estate licensing exam for a sales or broker license in the time and manner stated in section 54-2014, Idaho Code, and pay the required exam fees;

(j) Be fingerprinted for the purpose of a national criminal history check to determine whether the applicant is qualified for licensure in accordance with section 67-9411A, Idaho Code. If the fingerprints are returned to the commission as illegible, the applicant shall, upon request from the commission, be fingerprinted again and file the new fingerprints with the commission;

(k) Sign and file with the commission an irrevocable consent to service, appointing the commission's executive director to act as the licensee's agent, ~~upon~~ on whom all judicial and other process or legal notices directed to such licensee may be served, and consenting that any lawful process against the licensee that is served ~~upon~~ on the executive director shall be of the same legal force and validity as if served ~~upon~~ on the licensee and that the authority shall continue in force as long as any liability remains outstanding in this state. Upon receipt of any such process or notice, the executive director shall immediately mail a copy of the same by certified mail to the last known address of the licensee. All licensees shall provide the commission a full and current mailing address and shall notify the commission in writing of any change in mailing address within ten (10) business days of the change;

(l) If licensing as an active salesperson or associate broker, provide the name and physical address of the main business location of the designated broker with whom the applicant will be licensed and the signature of that broker; or, if licensing as a designated broker, provide the name and physical address of the main business location. No Idaho sales associate may be licensed under or associated with more than one (1) Idaho broker at a time;

1 (m) Submit a properly completed application and all license, applica-
 2 tion, and other fees listed in section 54-2020, Idaho Code, or as other-
 3 wise required by statute or rule; and

4 (n) Provide satisfactory proof of meeting the mandatory errors and
 5 omissions insurance requirement for real estate licensees as stated in
 6 section 54-2013, Idaho Code.

7 (2) Additional requirements for broker and associate broker licenses.
 8 Applicants seeking a primary Idaho license as a broker or associate broker
 9 shall meet the additional following qualifications:

10 (a) Provide satisfactory evidence of having been actively engaged, on
 11 a full-time basis, for two (2) years as a licensed real estate sales-
 12 person within the last five (5) years immediately prior to the date
 13 ~~upon~~ on which the individual makes application. Such evidence shall
 14 demonstrate the productiveness of the licensed activity to have been
 15 generally commensurate with that of other licensees practicing in a
 16 similar capacity. Listings, sales, options, or other licensed activ-
 17 ities may be considered by the commission in determining whether the
 18 applicant meets this qualification.

19 (i) A broker or associate broker applicant may be required to fur-
 20 nish a report of listings and sales accomplished by the applicant
 21 during two (2) or more years within the last five (5) years of li-
 22 censure immediately prior to the application date;

23 (ii) This report shall be certified as correct by the broker or
 24 brokers with whom the applicant has been associated; provided,
 25 however, that upon preapproval by the commission, the applicant
 26 may verify that the report is correct in an alternative manner;

27 (iii) The broker experience requirement may be modified or re-
 28 duced, in whole or in part, at the discretion of the commission,
 29 based on the applicant's educational background or experience in
 30 related or affiliated business activities;

31 (iv) The commission, in its discretion, may make such additional
 32 investigation and inquiry relative to the applicant as it shall
 33 deem advisable;

34 (b) Designate a physical office location and a business name. The com-
 35 mission may refuse to issue a license to any person if the business name
 36 is the same as that of any person whose license has been suspended or re-
 37 voked or is so similar as to be easily confused with another licensee's
 38 name by members of the general public. However, nothing in this para-
 39 graph shall restrict an individual from obtaining a license in his or
 40 her own legal name.

41 (c) If currently licensed in Idaho as a salesperson and applying for
 42 a license as an Idaho broker or associate broker, the individual shall
 43 submit a new fingerprint card for processing in accordance with section
 44 67-9411A, Idaho Code, and pay associated fees.

45 SECTION 7. That Section 54-2409, Idaho Code, be, and the same is hereby
 46 amended to read as follows:

47 54-2409. APPLICATION FORM -- LICENSE CATEGORIES -- QUALIFICATIONS
 48 FOR REGISTRATION AND LICENSE. (1) The board shall approve an application
 49 form for the use of applicants. Each applicant shall submit an original

1 application to the board and provide information and documentation as the
 2 board may require, including, but not limited to, information relating to
 3 the education and experience of the applicant. The board shall accept for
 4 review the complete application of any person whose application, accompa-
 5 nied by the necessary documentation and fees, is submitted. The board shall
 6 carefully evaluate each application, and shall approve the registration
 7 and issuance of a license to any applicant who has not been convicted, found
 8 guilty, or received a withheld judgment or suspended sentence in this state
 9 or in any other state of a crime deemed relevant in accordance with section
 10 67-9411(1), Idaho Code, and who has met the education, experience, and
 11 examination requirements set forth in this chapter and the rules adopted
 12 pursuant to the provisions of this chapter. If the board finds ~~upon~~, on the
 13 basis of evidence submitted, and in accordance with the provisions of this
 14 chapter, that the applicant does not meet the requirements, the application
 15 shall be denied and any fees submitted shall not be refunded.

16 (2) The board shall issue licenses in the following categories:

17 (a) Drinking water distribution operator and drinking water treatment
 18 operator classes;

19 (b) Wastewater treatment operator, wastewater collection system oper-
 20 ator, and wastewater laboratory analyst classes;

21 (c) Backflow assembly tester.

22 (3) Each applicant for licensure as a water system operator or wastewa-
 23 ter system operator shall submit to the board a complete application with the
 24 required fee and provide documentation of having met the following require-
 25 ments prior to being considered for a license:

26 (a) Be a lawful resident of the United States;

27 (b) Possess a high school diploma, GED, or the equivalent, including
 28 graduation from a nonpublic school;

29 (c) Document additional education as outlined by rule;

30 (d) Document such experience as is required by rule;

31 (e) Successful completion of and a passing grade on the required exami-
 32 nation; and

33 (f) Other such requirements as may be determined by board rule.

34 SECTION 8. That Section 54-2916, Idaho Code, be, and the same is hereby
 35 amended to read as follows:

36 54-2916. QUALIFICATIONS FOR LICENSURE -- HEARING AID DEALER AND FIT-
 37 TER. To be eligible for licensure as a hearing aid dealer and fitter, the ap-
 38 plicant shall:

39 (1) Provide verification acceptable to the board of:

40 (a) Being at least twenty-one (21) years of age;

41 (b) Never having had a license revoked or otherwise sanctioned as part
 42 of disciplinary action from this or any other state;

43 (c) Never having been convicted, found guilty, or received a withheld
 44 judgment or suspended sentence in this state or in any other state of
 45 a crime that is deemed relevant in accordance with section 67-9411(1),
 46 Idaho Code; and

47 (d) Never having been found by the board to have engaged in conduct
 48 prohibited by this chapter, provided however, the board may take into

1 consideration the rehabilitation of the applicant and other mitigating
2 circumstances when considering applications for licensure;

3 (2) Provide educational documentation satisfactory to the board that
4 the applicant has successfully graduated from a four (4) year course at an
5 accredited high school or the equivalent, including graduation from a non-
6 public school; and

7 (3) Provide documentation that the applicant has successfully passed
8 an examination approved by the board.

9 SECTION 9. That Section 54-2916A, Idaho Code, be, and the same is hereby
10 amended to read as follows:

11 54-2916A. QUALIFICATIONS FOR LICENSURE -- SIGN LANGUAGE INTER-
12 PRETER. To be eligible for licensure as a sign language interpreter, the
13 applicant shall:

14 (1) File a written application with the board on forms prescribed and
15 furnished by the board. A nonrefundable application fee shall accompany the
16 completed written application. Such fees shall be established by the admin-
17 istrative rules of the board and shall be in such amounts as are reasonable
18 and necessary for the proper execution and enforcement of this chapter;

19 (2) Provide verification acceptable to the board of the following:

20 (a) Never having had a license or certification revoked or otherwise
21 sanctioned as part of disciplinary action from this or any other state;

22 (b) Never having been convicted of, found guilty of, or received a
23 withheld judgment or a suspended sentence in this state or in any other
24 state for any crime that is deemed relevant in accordance with section
25 67-9411(1), Idaho Code; and

26 (c) Never having been found by the board to have engaged in conduct pro-
27 hibited by this chapter.

28 The board may take into consideration the rehabilitation of the applicant
29 and other mitigating circumstances when considering applications for licen-
30 sure.

31 (3) Provide evidence satisfactory to the board of having successfully
32 passed a nationally recognized competency examination approved by the board
33 or achieved certification defined by board rule;

34 (4) Provide educational documentation satisfactory to the board that
35 the applicant has successfully graduated from a four (4) year course at an
36 accredited high school, including graduation from a nonpublic school, or the
37 equivalent; and

38 (5) Provide documentation that the applicant has successfully passed
39 an examination approved by the board.

40 SECTION 10. That Section 54-2916B, Idaho Code, be, and the same is
41 hereby amended to read as follows:

42 54-2916B. QUALIFICATIONS FOR LICENSURE -- VIDEO REMOTE INTERPRET-
43 ING PROVIDER. To be eligible for licensure as a video remote interpreting
44 provider, the applicant shall:

45 (1) File a written application with the board on forms prescribed and
46 furnished by the board. A nonrefundable application fee shall accompany the
47 completed written application. Such fees shall be established by the admin-

1 istrative rules of the board, subject to legislative approval, and shall be
 2 in such amounts as are reasonable and necessary for the proper execution and
 3 enforcement of this chapter;

4 (2) Provide a roster of all employed sign language interpreters; and

5 (3) Provide verification acceptable to the board that all employed sign
 6 language interpreters meet the qualifications of a sign language inter-
 7 preter in this state and have:

8 (a) Successfully passed a nationally recognized competency examina-
 9 tion approved by the board or achieved certification as defined by board
 10 rule;

11 (b) Successfully graduated from a four (4) year course at an accred-
 12 ited high school, including graduation from a nonpublic school, or the
 13 equivalent;

14 (c) Successfully passed an examination approved by the board;

15 (d) Never had a license or certification revoked or otherwise sanc-
 16 tioned as part of disciplinary action from this or any other state;

17 (e) Never been convicted of, found guilty of, or received a with-
 18 held judgment or a suspended sentence in this state or in any other
 19 state for any crime that is deemed relevant in accordance with section
 20 67-9411(1), Idaho Code;

21 (f) Never been found by the board to have engaged in conduct prohibited
 22 by this chapter;

23 (g) Maintained required continuing education units under nationally
 24 recognized certification or other certification recognized by the
 25 board; and

26 (h) Knowledge of and compliance with the provisions of this chapter.

27 SECTION 11. That Section 54-3108, Idaho Code, be, and the same is hereby
 28 amended to read as follows:

29 54-3108. QUALIFICATIONS -- REQUIRED EXAMINATION -- RENEWAL OF CER-
 30 TIFICATES. (1) Applicants for certification must take and pass the Idaho
 31 certified shorthand reporter examination. Alternatively, applicants for
 32 certification must provide proof, satisfactory to the board, of having
 33 passed one (1) of the following examinations within the two (2) years prior
 34 to the date of the application:

35 (a) The registered professional reporter (RPR) examination;

36 (b) The registered merit reporter (RMR) examination;

37 (c) The registered diplomate reporter (RDR) examination;

38 (d) The certified realtime reporter (CRR) examination; or

39 (e) The certified realtime captioner (CRC) examination.

40 (2) Any applicant who is a lawful resident of the United States, who
 41 has not been convicted, found guilty, or received a withheld judgment or a
 42 suspended sentence in this state or in any other state of a crime that is
 43 deemed relevant in accordance with section 67-9411(1), Idaho Code, and who
 44 has graduated from an accredited high school or from a nonpublic school or
 45 has an equivalent education, shall be entitled to receive a certificate as
 46 a certified shorthand reporter upon payment of the fees required by this
 47 chapter. All applications shall be in such form as prescribed by the board
 48 and filed with the board at least thirty (30) days prior to the announced date
 49 of the reporter examination. The board, in its discretion, may make such

1 additional investigation and inquiry, or require additional information
 2 from the applicant, as it shall deem necessary in determining the qualifica-
 3 tions of the applicant. The board shall thereupon notify the applicant as to
 4 whether ~~their~~ such application to take the reporter examination is accepted.

5 (3) All certified shorthand reporter certificates shall be issued for a
 6 period of two (2) years and shall be renewable upon payment of a renewal fee.
 7 The renewal and reinstatement of all certificates issued ~~under~~ pursuant to
 8 the provisions of this chapter shall be in accordance with section 67-2614,
 9 Idaho Code.

10 SECTION 12. That Section 54-3109, Idaho Code, be, and the same is hereby
 11 amended to read as follows:

12 54-3109. QUALIFICATIONS FOR TEMPORARY PERMIT -- RENEWAL. (1) A tempo-
 13 rary certified shorthand reporter permit may be issued to an applicant who
 14 pays the required fees and who:

15 (a) Has not been convicted, found guilty, or received a withheld judg-
 16 ment or a suspended sentence in this state or in any other state of a
 17 crime that is deemed relevant in accordance with section 67-9411(1),
 18 Idaho Code; and

19 (b) Has graduated from an accredited high school or from a nonpublic
 20 school or has an equivalent education; and

21 (i) Is currently licensed in good standing in another state as
 22 a certified shorthand reporter, or its equivalent, or has other-
 23 wise demonstrated proficiency by a certificate from an agency of
 24 another state; or

25 (ii) Has graduated from a national court reporters association
 26 (NCRA)-approved school.

27 (2) The application shall be upon such forms as are prescribed by the
 28 board and the board may, in its discretion, make additional investigation
 29 and inquiry, or require further information from the applicant, as it shall
 30 deem necessary in order to make a determination of the qualifications of the
 31 applicant.

32 (3) An individual shall ~~only~~ be issued only one (1) temporary certified
 33 shorthand reporter permit. The permit shall be valid for a period of one (1)
 34 year and may be renewed for a single additional period of one (1) year upon
 35 the payment of required fees and upon a showing of just cause.

36 SECTION 13. That Section 54-4009, Idaho Code, be, and the same is hereby
 37 amended to read as follows:

38 54-4009. REQUIREMENTS FOR ISSUANCE OF LICENSE. Upon application to
 39 the board and the payment of the required fees, an applicant may be licensed
 40 as a massage therapist if the applicant meets all the requirements of this
 41 chapter and provides documentation acceptable to the board that ~~he or she~~ the
 42 applicant:

43 (1) Has obtained a high school diploma or equivalent, including gradua-
 44 tion from a nonpublic school;

45 (2) Is eighteen (18) years of age or older;

1 (3) Has not been convicted, found guilty, or received a withheld judg-
 2 ment or a suspended sentence in this state or in any other state of a crime
 3 that is deemed relevant in accordance with section 67-9411(1), Idaho Code;

4 (4) Has successfully completed a massage program registered pursuant
 5 to chapter 24, title 33, Idaho Code, or a comparable authority in another
 6 state that consists of the minimum of five hundred (500) in-class supervised
 7 hours of coursework and clinic work; and

8 (5) Has successfully passed a nationally recognized competency exami-
 9 nation in massage therapy that is approved by the board. The passage of this
 10 exam may have occurred prior to the effective date of this chapter.

11 SECTION 14. That Section 54-4307, Idaho Code, be, and the same is hereby
 12 amended to read as follows:

13 54-4307. POLYSOMNOGRAPHY-RELATED RESPIRATORY CARE. (1) Only persons
 14 who are licensed as respiratory care practitioners or who are exempt from
 15 licensure pursuant to section 54-4312, Idaho Code, or who hold a permit is-
 16 sued by the board ~~under~~ pursuant to the provisions of this chapter may pro-
 17 vide polysomnography-related respiratory care services.

18 (2) An applicant for a permit to provide polysomnography-related res-
 19 piratory care services must:

20 (a) Submit an application to the board on forms prescribed by the board
 21 and pay the permit fee required ~~under~~ pursuant to this chapter;

22 (b) Not have been convicted of an offense or disciplined by a licensing
 23 body in a manner that bears, in the judgment of the board, a demonstra-
 24 ble relationship to the provision of polysomnography-related respira-
 25 tory care services;

26 (c) Be a high school graduate, have graduated from a nonpublic school,
 27 or have passed a general educational development (GED) examination and
 28 earned a GED certificate; and

29 (d) Be currently certified in cardiopulmonary resuscitation.

30 (3) A polysomnographic technologist applicant must have successfully
 31 completed the certification examination approved by the board.

32 (4) A polysomnographic technician applicant must have successfully
 33 completed a polysomnography program of not less than one (1) year duration,
 34 associated with a nationally accredited educational facility.

35 SECTION 15. That Section 54-5406, Idaho Code, be, and the same is hereby
 36 amended to read as follows:

37 54-5406. DRIVING INSTRUCTORS -- REQUIREMENTS. (1) Each person apply-
 38 ing for a driving instructor license must complete an application provided
 39 by the division of occupational and professional licenses that requires
 40 the applicant to be at least twenty-one (21) years of age and have a high
 41 school diploma or equivalent, including proof of graduation from a nonpub-
 42 lic school, a valid driver's license and a satisfactory driving record from
 43 the jurisdiction from which the license was issued, a satisfactory finger-
 44 print-based criminal history check in accordance with section 67-9411A,
 45 Idaho Code, a medical certificate, and any required completed coursework.
 46 Licensees shall certify that they hold a current medical certificate at the
 47 time of license renewal.

(2) Every new applicant for a license pursuant to this chapter shall have completed a board-approved apprenticeship training program of no fewer than thirty (30) hours of classroom instruction and fifty (50) hours of behind-the-wheel training. The board may waive, as a whole or either part, the apprenticeship for an applicant who holds a current, active and unrestricted equivalent instructor license from another state or who has the requisite training and experience as demonstrated in a manner established by board rule. Such applicant shall submit supporting documentation with the completed application and shall meet all other requirements in this chapter and in board rule.

SECTION 16. That Section 54-5802, Idaho Code, be, and the same is hereby amended to read as follows:

54-5802. DEFINITIONS. As used in this chapter:

(1) "Apprentice" means a person registered with the barber and cosmetology services licensing board to learn an occupation in a licensed establishment who, while so learning, performs or assists in performing any practices of barbering, barber-styling, cosmetology, or electrology.

(2) "Barber" means a person licensed to practice barbering as defined in this section.

(3) "Barbering" means any one (1) or any combination of the following practices when performed on the upper part of the human body for cosmetic purposes and not for the treatment of disease or physical or mental ailments:

(a) Shaving the face or cutting, trimming, arranging, dressing, curling, cleansing, singeing or performing similar work on the hair;

(b) Fitting, cutting or dressing hairpieces or toupees;

(c) Giving facial and scalp massages or treatments with oils, creams, lotions or other preparations, either by hand or by a mechanical appliance; and

(d) Applying cosmetic preparations, antiseptics, powders, oils, clays or lotions to the scalp, face, and neck.

(4) "Barber-styling" means any one (1) or any combination of the following practices when performed on the upper part of the human body for cosmetic purposes and not for the treatment of disease or physical or mental ailments:

(a) Shaving the face or cutting, trimming, arranging, dressing, curling, waving by any method, straightening, cleansing, singeing, bleaching, coloring or performing similar work on the hair;

(b) Fitting, cutting or dressing hairpieces or toupees;

(c) Giving facial and scalp massages or treatments with oils, creams, lotions or other preparations, either by hand or by a mechanical appliance; and

(d) Applying cosmetic preparations, antiseptics, powders, oils, clays or lotions to the scalp, face, and neck.

(5) "Barber-stylist" means a person licensed to practice barber-styling as defined in this section.

(6) "Board" means the barber and cosmetology services licensing board established by section 54-5806, Idaho Code.

(7) "Cosmetologist" means a person licensed to practice cosmetology as defined in this section.

1 (8) "Cosmetology" means any one (1) or any combination of the following
 2 practices when performed on the human body for cosmetic purposes and not for
 3 the treatment of disease or physical or mental ailments:

4 (a) Cutting, trimming, arranging, dressing, curling, waving by any
 5 method, cleansing, singeing, bleaching, coloring or performing similar
 6 work on the hair, except as provided for in subsection ~~(25)~~ (24) of this
 7 section; ~~(23)~~

8 (b) Fitting, cutting or dressing hairpieces or toupees;

9 (c) Noninvasive care of the skin by application of cosmetic prepa-
 10 rations, antiseptics, tonics, lotions, creams and essential oils
 11 to cleanse, massage, exfoliate, hydrate and stimulate; makeup ap-
 12 plication; pore extraction; use of chemical exfoliants approved for
 13 professional esthetic use; particle exfoliation; use of any class I
 14 medical device, as classified by the United States food and drug admin-
 15 istration, designed for care of the skin, except that a class II medical
 16 device designed for care of the skin may be used as directed and super-
 17 vised by an authorized and licensed health care practitioner; temporary
 18 removal of superfluous hair by lotions, creams, waxing, tweezing, de-
 19 pilatories or other means; and tinting or perming the eyebrows and
 20 eyelashes; and

21 (d) Manicuring and pedicuring nails and applying artificial nails.

22 (9) "Division" means the division of occupational and professional li-
 23 censes.

24 (10) "Electrologist" means a person licensed to practice electrology,
 25 as defined in this section, and skilled in the permanent removal of unwanted
 26 hair.

27 (11) "Electrology" or "electrolysis" means the permanent removal of
 28 hair by destroying the hair-producing cells of the skin and vascular system
 29 through the use of equipment and devices approved by and registered with the
 30 United States food and drug administration.

31 (12) "Establishment" means a place licensed under this chapter, other
 32 than a licensed school, where barbering, barber-styling, cosmetology or
 33 electrology is practiced.

34 (13) "Esthetician" means a person licensed to practice esthetics as de-
 35 fined in this section.

36 (14) "Esthetics" means noninvasive care of the skin by application of
 37 cosmetic preparations, antiseptics, tonics, lotions, creams and essential
 38 oils to cleanse, massage, exfoliate, hydrate and stimulate; makeup applica-
 39 tion; pore extraction; use of chemical exfoliants approved for professional
 40 esthetic use; particle exfoliation; use of any class I medical device, as
 41 classified by the United States food and drug administration, designed for
 42 care of the skin, except that a class II medical device designed for care
 43 of the skin may be used as directed and supervised by an authorized and li-
 44 censed health care practitioner; temporary removal of superfluous hair by
 45 lotions, creams, waxing, tweezing, depilatories or other means; and tinting
 46 or perming the eyebrows and eyelashes.

47 (15) "Haircutting" means cutting, trimming, arranging, dressing, curl-
 48 ing, cleansing, singeing or performing similar work on the hair and fitting,
 49 cutting or dressing hairpieces or toupees.

1 (16) "Hairpieces or toupees" means a full or partial head covering that
 2 is made from natural or synthetic hair that is affixed to a person's scalp,
 3 hair, or head with an adhesive agent such as glue, tape, keratin bonds, fu-
 4 sion bonds, or other bonding agent, and is worn during activities such as
 5 sleep, exercise, and bathing.

6 (17) "High school student" means a person who has completed the first
 7 two (2) years of high school and is enrolled in a high school or secondary
 8 school licensed under this chapter or who attends an Idaho nonpublic high
 9 school.

10 (18) "Instructor" means a person licensed under this chapter to prac-
 11 tice and teach any practice defined in this section.

12 (19) "Instructor trainee" means a barber, barber-stylist or cosmetol-
 13 ogist attending a licensed school to receive training to teach barbering,
 14 barber-styling or cosmetology.

15 (20) "Licensed school" means a secondary or postsecondary barber, cos-
 16 metology, or electrology school that:

17 (a) Is licensed under its official name by the barber and cosmetology
 18 services licensing board; and

19 (b) Admits as students only those individuals who meet the requirements
 20 of section 54-5810(1)(b), Idaho Code.

21 ~~(22)~~ (21) "Makeup artistry" means noninvasive care of the skin by appli-
 22 cation of cosmetic preparations for cleansing and the application of makeup,
 23 which includes the application of cosmetics or any pigment product that is
 24 used to cover, camouflage or decorate the skin.

25 ~~(23)~~ (22) "Nail technician" means a person licensed to practice nail
 26 technology as defined in this section.

27 ~~(24)~~ (23) "Nail technology" means any one (1) or more of the following
 28 practices when performed on the human body:

29 (a) Manicuring and pedicuring nails;

30 (b) Applying artificial nails; and

31 (c) Massaging the hands and feet.

32 ~~(25)~~ (24) "Natural hair braiding" means the service of twisting, wrap-
 33 ping, weaving, extending, locking, or braiding hair by hand or with a mechan-
 34 ical device.

35 (a) "Natural hair braiding" includes:

36 (i) The use of natural or synthetic hair extensions, natural or
 37 synthetic hair and fibers, and decorative beads and other hair ac-
 38 cessories;

39 (ii) Minor trimming of natural hair or hair extensions incidental
 40 to twisting, wrapping, weaving, extending, locking, or braiding
 41 hair;

42 (iii) The making of wigs from natural hair, natural fibers, syn-
 43 thetic fibers, and hair extensions; and

44 (iv) The use of topical agents, such as conditioners, gels,
 45 moisturizers, oils, pomades, and shampoos, in conjunction with
 46 performing services under subparagraphs (i) or (ii) of this para-
 47 graph.

48 (b) "Natural hair braiding" does not include:

(i) The application of dyes, reactive chemicals, or other preparations to alter the color of the hair or to straighten, curl, or alter the structure of the hair; or

(ii) The use of chemical hair joining agents, such as synthetic tape, keratin bonds, or fusion bonds.

~~(26)~~ (25) "Retail cosmetics dealer" means a stationary business offering cosmetic products for sale at retail to the general public in which the business's employees apply cosmetic products to customers' faces in connection with the sale or attempted sale of the products without compensation from the customer other than the regular price of the products.

~~(28)~~ (26) "Student" means a person learning barbering, barber-styling, cosmetology or electrology at a licensed school who, while so learning, performs or assists in performing any practices of barbering, barber-styling, cosmetology or electrology.

~~(29)~~ (27) "Wig" means a removable head covering that is made from natural hair, natural fibers that resemble hair, or synthetic fibers that resemble hair. A wig is not affixed to a person's scalp or hair using an adhesive agent such as glue, tape, keratin bonds, fusion bonds, or other bonding agent.

SECTION 17. That Section 54-5810, Idaho Code, be, and the same is hereby amended to read as follows:

54-5810. QUALIFICATIONS FOR LICENSURE -- INSTRUCTORS -- APPRENTICES -- STUDENTS. (1) To qualify for licensure under this chapter, an applicant for licensure must:

(a) Be at least sixteen and one-half (16 1/2) years of age at the time of application;

(b) Have completed at least two (2) years of high school or have attained an equivalent education as determined by the board, which shall include an equivalent amount of education in a nonpublic school;

(c) Pass an examination for the occupation in which the applicant is seeking licensure, which examination shall be conducted or approved by the board; and

(d) Prove to the satisfaction of the board that the applicant has not engaged in conduct that would constitute grounds for discipline under section 54-5823, Idaho Code.

(2) Except as otherwise provided, and in addition to the requirements listed in subsection (1) of this section, an applicant for licensure:

(a) As a barber, must have:

(i) Completed and graduated from a course of instruction of at least nine hundred (900) hours in a barber school approved by the board; or

(ii) Completed at least one thousand eight hundred (1,800) hours as an apprentice in an apprenticeship that covered all aspects of the practice of barbering;

(b) As a barber-stylist, must have:

(i) Completed and graduated from a course of instruction of at least one thousand five hundred (1,500) hours in a barber school approved by the board; or

- 1 (ii) Completed at least three thousand (3,000) hours as an appren-
 2 tice in an apprenticeship that covered all aspects of the practice
 3 of barber-styling;
- 4 (c) As a cosmetologist, must have:
- 5 (i) Completed and graduated from a course of instruction of at
 6 least one thousand six hundred (1,600) hours in a cosmetology
 7 school approved by the board; or
- 8 (ii) Completed at least three thousand two hundred (3,200) hours
 9 as an apprentice in an apprenticeship that covered all aspects of
 10 the practice of cosmetology;
- 11 (d) As an electrologist, must have:
- 12 (i) Completed and graduated from a course of instruction of at
 13 least six hundred (600) hours in a school approved by the board; or
- 14 (ii) Completed at least one thousand two hundred (1,200) hours as
 15 an apprentice in a cosmetology establishment under the direct per-
 16 sonal supervision of a licensed electrologist instructor;
- 17 (e) As an esthetician, must have:
- 18 (i) Completed and graduated from a course of instruction of at
 19 least six hundred (600) hours in a school approved by the board; or
- 20 (ii) Completed at least one thousand two hundred (1,200) hours
 21 as an apprentice in a cosmetology establishment under the direct
 22 personal supervision of a licensed cosmetology instructor. Such
 23 establishment must have at least one (1) licensed esthetician
 24 on-site in accordance with board rules; and
- 25 (f) As a nail technician, must have:
- 26 (i) Completed and graduated from a course of instruction of at
 27 least four hundred (400) hours in a school approved by the board;
 28 or
- 29 (ii) Completed at least eight hundred (800) hours as an apprentice
 30 in a cosmetology establishment under the direct personal super-
 31 vision of a licensed cosmetology instructor. Such establishment
 32 shall have at least one (1) licensed nail technician on-site in ac-
 33 cordance with board rules.
- 34 (3) To qualify as an instructor of barbering, barber-styling, cosme-
 35 tology, electrology, esthetics, or nail technology, an applicant must:
- 36 (a) Hold a current license in the profession or closely related profes-
 37 sion, as determined by the board, for which the applicant seeks to in-
 38 struct;
- 39 (b) Have worked for at least five (5) of the last seven (7) years as a li-
 40 censed barber, barber-stylist, cosmetologist, electrologist, estheti-
 41 cian, or nail technician, or have satisfactorily completed:
- 42 (i) A minimum six (6) month teacher's course of instruction in one
 43 (1) of the specialties described in this subsection; or
- 44 (ii) A minimum three (3) month teacher's course of instruction in
 45 a school of one (1) of the specialties described in this subsec-
 46 tion, if the applicant has at least two (2) years of experience as
 47 a licensee in one (1) of the specialties described in this subsec-
 48 tion; and

1 (c) Have completed twelve (12) college credit hours or equivalent edu-
2 cation, as determined by the board, or pass an examination approved by
3 the board.

4 (4) To be qualified to hold an apprenticeship for purposes of this chap-
5 ter, a person must:

6 (a) Meet the qualifications set forth in paragraphs (a), (b), and (d) of
7 subsection (1) of this section; and

8 (b) Be registered as an apprentice with the board.

9 (5) To be considered a student for purposes of this chapter, a person
10 must:

11 (a) Meet the qualifications set forth in paragraph (b) of subsection
12 (1) of this section; and

13 (b) Be registered as a student in a licensed barber school or cosmetol-
14 ogy school.

15 (6) A high school student enrolled in a licensed school or who attends
16 high school at an Idaho nonpublic school may be under sixteen and one-half
17 (16 1/2) years of age while accruing the course of instruction hours required
18 for licensure.

19 SECTION 18. An emergency existing therefor, which emergency is hereby
20 declared to exist, this act shall be in full force and effect on and after its
21 passage and approval.